



SPONSOR: Rep. Wilson-Anton & Rep. S. Moore & Rep. Phillips
Reps. Burns, Lambert

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 247

AN ACT RELATING TO THE COLLECTION OF TAXES FOR REAL PROPERTY IN THE 2025-2026 TAX YEAR.

1 WHEREAS, many Delaware homeowners have raised questions and concerns about the recent general
2 reassessment process; and

3 WHEREAS, the tax burden has drastically shifted to homeowners, with vulnerable groups like seniors, low-
4 income families, and long-time residents being hit the hardest; and

5 WHEREAS, while the General Assembly is pursuing long-term solutions to address these concerns during the
6 upcoming 2026 legislative session, homeowners need immediate relief because tax increases threaten homeowners' ability
7 to stay in their homes, especially senior citizens who live on fixed incomes and who have already paid off their mortgages.

8 NOW, THEREFORE:

9 BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

10 Section 1. Notwithstanding § 8601 through § 8604 of Title 9 of the Delaware Code and Chapter 19 of Title 14 of
11 the Delaware Code, the appropriate tax collecting authority for New Castle County ("New Castle County") shall offer all
12 taxpayers a payment plan for county property taxes and school taxes assessed to residential properties. For each payment
13 plan, New Castle County must consider the difference in taxes owed between the 2024-2025 tax year and the 2025-2026
14 tax year. After offering a payment plan, New Castle County must give the taxpayer at least 30 days after the date of the
15 offer to enter into the payment plan.

16 Section 2. Notwithstanding Chapter 87 of Title 9 of the Delaware Code, § 2905 of Title 25 of the Delaware Code,
17 or other State or county law allowing for the collection of taxes, if a taxpayer enters into a payment plan under Section 1 of
18 this Act and makes payments in compliance with the payment plan, New Castle County may not collect the taxes owed out
19 of the taxpayer's real property or personal property, including by doing any of the following:

- 20 (1) Filing a civil action.
21 (2) Garnishing the taxpayer's wages.
22 (3) Seizing the taxpayer's real or personal property.
23 (4) Issuing a monition.
24 (5) Filing for a writ of venditioni exponas.

(6) Instituting attachment proceedings under Subchapter III, Chapter 87 of Title 9 of the Delaware Code.

(7) Selling the taxpayer's real or personal property through a sheriff's sale or any other legal proceeding.

(8) Filing an action to collect on a tax lien.

Section 3. Notwithstanding § 8694 of Title 9 of the Delaware Code, of § 1917 of Title 14 of the Delaware Code, or any other State or county law allowing late fees, penalties, or interest to be charged on county or school taxes, if a taxpayer enters into a payment plan under Section 1 of this Act and makes payments in compliance with the payment plan, New Castle County may not charge any fees, penalties, or interest on the taxes due.

Section 4. This Act applies to New Castle County residential property and school taxes assessed for the 2025-2026 tax year.

Section 5. (1) This Act expires on December 31, 2026, unless otherwise provided by a subsequent action of the General Assembly.

(2) Notwithstanding paragraph (1) of this section, Section 2 and Section 3 of this Act continue to apply to payment plans that continue on or after December 31, 2026, so long as the taxpayer makes payments in compliance with the payment plan.

SYNOPSIS

This Act is a short-term response to the recent tax reassessment that protects homeowners, who have received substantially increased property and school tax bills for the 2025-2026 tax year, from legal action while the General Assembly and New Castle County explore long-term solutions.

Many Delaware homeowners have raised several troubling questions and concerns about the property reassessment process. After the reassessment, the tax burden has drastically shifted to homeowners, which has hit vulnerable groups the hardest, including seniors, low-income families, and long-term residents.

This Act requires the tax collecting authority for New Castle County ("County") to offer payment plans to all taxpayers to pay county property and school taxes assessed to residential properties for the 2025-2026 tax year. After offering the payment plan, the County must give a taxpayer at least 30 days from the date of the offer to enter into the payment plan.

If a taxpayer enters into a payment plan and makes payments in compliance with the payment plan, the County may not collect the taxes owed out of the taxpayer's real or personal property, including by filing a civil action to collect the taxes or by seizing or selling the taxpayer's property. Additionally, the County may not charge fees, penalties, or interest on taxes owed by taxpayers who make payments in compliance with the payment plan.

This Act sunsets on December 31, 2026, unless otherwise provided by a subsequent Act of the General Assembly. But the prohibitions on collecting taxes out of the taxpayer's real or personal property and on charging fees, penalties, or interest on taxes continue to apply to payment plans that extend on or beyond December 31, 2026, so long as the taxpayer remain in compliance with the payment plan.